S.K. LING & TAN ADVOCATES 林勢强律師館
(KUCHING)

DATUK LING SII KIONG	林勢强	PJN, B.A., M.ED. (UNSW), LL.B. (Sydney Uni.)
TAN KEE HENG	陳其興	LL.B. (Hons.) (UK); C.L.P; Commissioner for Oaths & Notary Public
JESS JONG PEI SZE	楊佩蒔	LL.B. (Hons.) (QUT); G.D.L.P. (QUT) QLD, Australia
MARK TENG WEI HOW	鄧惟豪	LL.B. (Hons.) (Hull); C.L.P
SERI AFIDA BINTI BUJANG	詩惠麗	LL.B. (Hons.) IIUM; Peguam Syarie
NURUL FAIZILLA BINTI KADID	努魯	LL.B. (Hons.) DLSA (UiTM); Peguam Syarie
LESLEY LING LYN	林玲	LL.B. (Hons.) (Aberystwyth); C.L.P
CLARISSA KUEK JIA YEE	郭嘉怡	LL.B. (Hons.)(Leeds), Barrister-at-Law (Lincoln's Inn)
JOYCE CHEAH JIA XIN	謝佳芯	LL.B. (Hons.) (Hertfordshire); G.D.L.P. (Bond) QLD, Australia
KAREN NGU KET HUNG	吳克鳳	LL.B. (Hons.) U.W.E (UK); C.L.P
SAMUEL WONG BOK SIONG	黃博祥	LL.B. (Canterbury) CHCH, New Zealand
NG LEE SIN	黃利新	LL.B. (Hons.) (London); C.L.P
JOANNE TANG MEI JIE	郑湄洁	LL.B. (Hons.) (Belfast, NI); BPTC

Advocates & Solicitors
Commissioner for Oaths & Notary Public

C355 to C359, 2nd Floor, Block C,
Icom Square, Jalan Pending,
93450 Kuching, Sarawak, Malaysia.

082-35 6969
082-35 6677
conveyancing@sklingtan.com
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☐ Registered Post ☑ By Hand
☐ By Courier ☐ By Fax
☐ By e-Filing

CRC REGIONAL OFFICE SARAWAK
BANK PERTANIAN MALAYSIA BHD
21 AUG 2024
Diterima oleh: JA
Tindakan: MMB

Date : 20th August 2024
Our Ref : BPM/Betong/LT-KG/64/23/cc
Your Ref : 47591001396300000

BANK PERTANIAN MALAYSIA BERHAD
(Company No. 811810-U)
Lot 491 & 492, Jalan Rambutan,
93400 Kuching, Sarawak.

Dear Sirs,

Re: High Court Bankruptcy Proceedings No. SRA-29[redacted])
Judgment Debtor : [redacted] 7
Judgment Creditor : Bank Pertanian Malaysia Berhad

We refer to the above-mentioned matter.

Please find enclosed herewith the following documents for your kind attention and record: -

1. A copy of the **Proof of Debt General Form** affirmed on **16th August 2024**; and
2. Two (2) copies of **Official Receipt No. 1312024002761 and No. 1312024002762, both dated 20th August 2024 in the sum of RM50.00 and RM2.00 respectively** being the filing fee for the above Proof of Debt.

Kindly acknowledge receipt of this letter and its enclosure by signing and returning the photocopy of this letter to us.

Thank you.

Yours faithfully,

S. K. LING & TAN ADVOCATES (KUCHING)

(Courts 465)
(Rev. 8/85)

IN THE HIGH COURT IN SABAH AND SARAWAK AT SRI AMAN

IN BANKRUPTCY PROCEEDINGS NO. SRA-29NCC-9-4/2024 (HC)

Re *(a)* **SYLVESTER EZEKLEY ANAK BALIE (WN.KP.920623-13-5203)**

[Trading under the name and style of SYARIKAT BINTANG 7 (Business GA2015099)]

PROOF OF DEBT GENERAL FORM

I *(b)* **KORNIATI KHALIK (WN.KP. 730131-13-5322)**, Head of Special Asset Management Centre, Sarawak Regional Office of **BANK PERTANIAN MALAYSIA BERHAD (Company No. 811810-U)** of **Lot 491 & 492, Jalan Rambutan, 93400 Kuching, Sarawak** affirm and say:

(c) That I am in the employ of the under mentioned creditor, and that I am duly authorised by **BANK PERTANIAN MALAYSIA BERHAD (Company No. 811810-U)** to make this affidavit, and that it is within my own knowledge that the debt hereinafter deponed to was incurred, and for the consideration stated, and that such debt, to the best of my knowledge and belief, still remains unpaid and unsatisfied.

(d) That I am duly authorised, under the seal of the company hereinafter named, to make the proof of debt on its behalf.

1. That the said **SY[redacted]IE (WN.KP. 920623-13-5203) [Trading under the name and style of S[redacted]7 (Business Name Registration No. GA2015099)]** was, at the date of **Bankruptcy Order, viz., the 5th day of August 2024** and still is justly and truly indebted to *(e)* **BANK PERTANIAN MALAYSIA BERHAD (Company No. 811810-U)** in the sum of **RM121,656-28** for *(f)* **Judgment dated 26th January 2024** as shown by the account endorsed hereon, or by the following account, viz. :

for which sum or any part thereof I say that I have not nor hath *(g)* the abovementioned creditor or any person by *(h)* our or their order to my knowledge or belief for *(h)* our or their use had or received any manner of satisfaction or security whatsoever, save and except the following *(i)*

Date	Drawer	Acceptor	Amount		Due date
			RM	*Sen*	

Affirmed at

This day of 16 AUG 2024

2024

Before me,

(g) Deponent's signature

KORNIATI KHALIK

The Proof cannot be admitted for voting at the first meeting unless it is properly completed and lodged with the Official Assignee before the time named in the notice convening such meeting.

TAN MEE HENG
No. Sipi Amalan Peguam: 028
1.1.2022 - 31.12.2024
MALAYSIA

Address of Service:-
S.K. LING & TAN ADVOCATES
C355 to C359, 2nd Floor, Block C,
Icom Square, Idah Pending,
93450 Kuching, Sarawak.

(a) Here insert the name of Debtor, as given on the notice of meeting

(b) Fill in full name, address and occupation of deponent.

If proof made by creditor, strike out clauses *(c)* and *(d)*.

If made by clerk strike out *(d)*.

If by agent of company strike out *(c)*

(e) Insert me and to *C.D. & E.F. my co-partners in trade* if any, or, if by clerk insert name, address and description of principal

NOTE THIS

(f) State consideration [as-Goods sold and delivered by me (and my said partner) to him (*or* them) at his (*or* their) request between the dates of (*or* monies advanced by me in respect of the undermentioned bill of exchange)(*or as the case may be*)] *See back*

(g) My said partners or any of them *or* the abovenamed creditor (*as the case may be*)

(h) My or our or their or his (*as the case may be*)

(i) Here state the particulars of all securities held and where the securities are on the property of the debtor, assess the value of the same, and if any bills or other negotiable securities be held, Specify them in the scheduled.

You should attend carefully to these directions

Admitted to vote for RM this day of 2024
Official Assignee

Admitted to rank for Dividend for RM this day of 2024
Official Assignee

KERAJAAN MALAYSIA
JABATAN INSOLVENSI MALAYSIA

RESIT RASMI

ASAL

Diterima daripada	:S.K.LING & TAN ADVOCATES (KCH)		
No.Pengenalan / No.Syarikat	:KCH/SKL	No. Resit	:1312024002762
Alamat	:C355 TO C359 2ND FLOOR BLOK C ICOM SQUARE JLN PENDING 93450 Kuching Sarawak	Tarikh	20/08/2024
		Resit	9:56:07
		Kaunter	:SA

Nama Bankrap / Nama Syarikat	: [redacted]
No. Pengenalan / No. Syarikat	: [redacted]
No. Insolvensi	: BP003820/2024
Kod Akaun	: 872499

Perihal Terimaan

Bil	Kod Item	Perihal Item	Amaun (RM)
1	162	Bayaran Undian Komposisi	2.00

Jumlah : RM2.00

Mod Terimaan : Kad Debit

Bil	No. Rujukan Mod Terimaan	Nama Bank	Amaun Dokumen (RM)
1	002021	AFFIN BANK BERHAD	2.00

Ringgit Malaysia : Dua Sahaja

HANYA SAH LAKU SETELAH PENYELESAIAN BANK

Ini adalah cetakan komputer dan tandatangan tidak diperlukan

No. Kelulusan Perbendaharaan : KK/BPSK/10/600-2/1/2(6)

JABATAN INSOLVENSI MALAYSIA
NEGERI SARAWAK

Sylvester

PATICULARS OF ACCOUNT REFERRED TO ON OTHER SIDE

(Credit should be given for Contra Accounts)

If space not sufficient let the particulars be annexed, but where particulars are on a separate sheet of paper the same must be marked by the person before whom the affidavit is sworn.

Date	Consideration	Amount		Remarks
		RM	*Sen*	
BO granted on 5th August 2024	Judgment sum as at 30.11.2023	106,313	84	The **Judgment dated 26th January 2024**, **Letter of Offer cum Agreement dated 22nd November 2021, Invoice No. SI 241940 dated 14th May 2024, Invoice No. SI 244570 dated 9th August 2024, Invoice No. SI 244571 dated 9th August 2024** are exhibited herewith and collectively marked as "A".
	Add: Compensation charges for late payment (Ta'widh) at the rate of 1% per annum on RM106,313-84 from 01.12.2023 to 31.12.2023 (31 days)	90	29	
	Add: Compensation charges for late payment (Ta'widh) at the rate of 1% per annum on RM106,313-84 from 01.01.2024 to 26.01.2024 (26 days)	75	52	
	Add: Compensation charges for late payment (Ta'widh) at Islamic Interbank Money Market (IIMM) rate of 3% per annum on RM106,313-84 from 27.01.2024 to 05.08.2024 (192 days)	1,673	13	
	Add: Costs on Solicitor and Client Basis	9,505	10	
	Add: Court Fees	481	00	
	Add: Invoice No. SI 241940 dated 14th May 2024	990	40	
	Add: Invoice No. SI 244570 dated 9th August 2024	2,284	00	
	Add: Invoice No. SI 244571 dated 9th August 2024	243	00	
	Outstanding as at 5th August 2024	**121,656**	**28**	

The Vouchers (if any), by which the account can be substantiated, should be set out here.

L-B3/108/PNMB, Kch

"A"

VERIF. CODE : 13-1162345-5892176-7455224
ENCLOSURE NO. : 9
PAYMENT AMOUNT: RM 200.00

PESURUHJAYA SUMPAH
NO. Q 194
TAN KEE HENG
No. Siji Amalan Peguam: 628
1.1.2022 - 31.12.2024
MALAYSIA

16 AUG 2024

WRIT

(SUBORDINATE COURTS)

IN THE SESSIONS COURT AT SRI AMAN

Suit No. SRA-A52M-31-12/2023 (SC)

BETWEEN

BANK PERTANIAN MALAYSIA BERHAD
(Company No. 811810-U)
No. 60, Bandar Baru Betong,
Jalan Betong,
95700 Betong, Sarawak. ... **PLAINTIFF**

AND

[redacted]
(WN.KP.60[redacted])
[Trading under the name and style of
SY[redacted]
(Business Name Registration No.[redacted])
PIBU Betong, Tingkat 1,
Sublot No. 39, Bandar Baru Betong,
95700 Betong, Sarawak.
And/or
Rumah Balie,
Nanga Mutok, Layar,
95700 Betong, Sarawak.
And/or
Rumah Jabu,
Nanga Mutok, Layar,
95700 Betong, Sarawak. ... **1ST DEFENDANT**

[redacted]
(WN.KP.[redacted])
[Trading under the name and style of
SY[redacted]
(Business Name Registration N[redacted])]
PIBU Betong, Tingkat 1,
Sublot No. 39, Bandar Baru Betong,
95700 Betong, Sarawak.
And/or
Rumah Balie,
Nanga Mutok, Layar,
95700 Betong, Sarawak.
And/or
Rumah Jabu,
Nanga Mutok, Layar,
95700 Betong, Sarawak. ... **2ND DEFENDANT**

VERIF. CODE : 13-1162345-5892176-7455224****ENCLOSURE NO. : 9
To verify the true copy of the document received, please acccess this link. URL Link: https://ekss-portal.kehakiman.gov.my/portals/verify/

VERIF. CODE : 13-1162345-5892176-7455224

JUDGMENT

No appearance having been entered by the above-named 1st and 2nd Defendants herein, it is this day adjudged that the 1st and 2nd Defendants do jointly and severally pay to the Plaintiff the outstanding sum of **RM106,313-84 calculated as at 30th November 2023** together with compensation charges for late payment (Ta'widh) accruing thereon at the rate of 1% per annum calculated from **1st December 2023** until the date of Judgment, and thereafter, at the prevailing Islamic Interbank Money Market (IIMM) rate until full and final settlement thereof, Costs on solicitor and client basis in the sum of **RM9,505-10** and Court fees of **RM481-00**.

Dated this 26th DAY OF JANUARY, 2024

SESSIONS COURT SRI AMAN
A.AKHIRUDDIN BIN ACHO SESSIONS COURT JUDGE

SESSIONS COURT SRI AMAN

Digitally Signed by A.AKHIRUDDIN @ BOY BIN ACHO,
E-KEHAKIMAN SABAH & SARAWAK.
Signing Date:29.01.2024 10:16:06 +0800

The Registrar
Subordinate Courts, Sri Aman

This **Judgment** is filed by Messrs. S. K. Ling & Tan Advocates (Kuching), Advocates acting for and on behalf of the Plaintiff whose address for service is at C355 to C359, 2nd Floor, Block C, Icom Square, Jalan Pending, 93450 Kuching, Sarawak. *(Ref: BPM/Betong/LT-KG/64/23/js)*

VERIF. CODE : 13-1162345-5892176-7455224****ENCLOSURE NO. : 9
To verify the true copy of the document received, please acccess this link. URL Link: https://ekss-portal.kehakiman.gov.my/portals/verify/

Particulars

Sealing Writ and Statement of Claim	RM208-00
Taking and marking Affidavits and filing Affidavit of Service	RM 33-00
Sealing Certificate of Non-Appearance x 2	RM 40-00
Sealing Judgment	RM200-00
	RM481-00

VERIF. CODE : 13-1162345-5892176-7455224****ENCLOSURE NO. : 9
To verify the true copy of the document received, please acccess this link. URL Link: https://ekss-portal.kehakiman.gov.my/portals/verify/

VERIF. CODE : 13-1189821-6176312-7826471
ENCLOSURE NO. : 19
PAYMENT AMOUNT: RM 40.00

MALAYSIA

IN THE HIGH COURT IN SABAH AND SARAWAK AT SRI AMAN

IN BANKRUPTCY PROCEEDINGS NO. SRA-29NCC-9-4/2024 (HC)

[Sessions Court Suit No. SRA-A52M-31-12/2023 (SC)]

RE: **SYLVESTER EZEKLEY ANAK BALIE**
(WN.KP[redacted])
[Trading under the name and style of
[redacted]
(Business Name Registration No. [redacted]
PIBU Betong, Tingkat 1,
Sublot No. 39, Bandar Baru Betong,
95700 Betong, Sarawak.
And/or
Rumah Balie,
Nanga Mutok, Layar,
95700 Betong, Sarawak.
And/or
Rumah Jabu,
Nanga Mutok, Layar,
95700 Betong, Sarawak. ... **JUDGMENT DEBTOR**

EX-PARTE: **BANK PERTANIAN MALAYSIA BERHAD**
(Company No. 811810-U)
No. 60, Bandar Baru Betong,
Jalan Betong,
95700 Betong, Sarawak. ... **JUDGMENT CREDITOR**

BEFORE THE SENIOR ASSISTANT REGISTRAR
SITI FARAH BINTI IBRAHIM
ON 5TH AUGUST 2024 **IN CHAMBER**

BANKRUPTCY ORDER ON CREDITOR'S PETITION
(Rule 133 of the Insolvency Rules 2017)

On the **Creditor's Petition dated the 28th day of May 2024** and registered as **Bankruptcy Petition No. KG 231 of 2024 on the 19th day of April 2024** of **BANK PERTANIAN MALAYSIA BERHAD (Company No. 811810-U)** of No. 60, Bandar Baru Betong, Jalan Betong, 95700 Betong, Sarawak, the above-named Judgment Creditor, filed on the 30th day of May 2024 and on reading the said Creditor's Petition and the Affidavit of Truth of Statements in Petition of **KORNIATI KHALIK (WN.KP. 730131-13-5322)** affirmed on the 28th day of May 2024 in support thereof and filed herein and UPON HEARING Samuel Wong Bok Siong of Counsel for the Judgment Creditor and in the presence of the Judgment Debtor and it appearing to the court that the following act or acts of bankruptcy has or have been committed, viz:

VERIF. CODE : 13-1189821-6176312-7826471****ENCLOSURE NO. : 19
To verify the true copy of the document received, please acccess this link. URL Link: https://ekss-portal.kehakiman.gov.my/portals/verify/

That the said **SYLVESTER EZEKLEY ANAK BALIE (WN.KP.920623-13-5203) [Trading under the name and style of SYARIKAT BINTANG 7 (Business Name Registration No. GA2015099)]** has failed to comply with the requirement of the Bankruptcy Notice dated 19th April 2024 which was duly served on him by way of personal service on 2nd May 2024 and thereby has committed an act of bankruptcy on 13th May 2024.

A Bankruptcy Order is hereby made against the said **SYLVESTER EZEKLEY ANAK BALIE (WN.KP.920623-13-5203) [Trading under the name and style of SYARIKAT BINTANG 7 (Business Name Registration No. GA2015099)]** lately residing and/or carrying on business at PIBU Betong, Tingkat 1, Sublot No. 39, Bandar Baru Betong, 95700 Betong, Sarawak and/or Rumah Balie, Nanga Mutok, Layar, 95700 Betong, Sarawak and/or Rumah Jabu, Nanga Mutok, Layar, 95700 Betong, Sarawak respectively and the Director General of Insolvency is hereby constituted receiver, manager, administrator and trustee of the estate of the said bankrupt.

Dated this 5th August 2024

By the Court,

HIGH COURT SARAWAK & SABAH

HIGH COURT KUCHING
SITI FARAH BINTI IBRAHIM
SENIOR ASSISTANT REGISTRAR

Digitally Signed by SITI FARAH BINTI IBRAHIM,
E-KEHAKIMAN SABAH & SARAWAK.
Signing Date:07.08.2024 17:54:10 +0800

Senior Assistant Registrar
High Court, Sri Aman

NOTE: The above-named bankrupt is required, immediately after the service of this Order upon him, to attend to the Director General of Insolvency at their office at 1st Floor, Wisma Hong, No.202, Batu 2 ¾, Jalan Rock, 93200 Kuching, Sarawak.

INDORSEMENT ON ORDER

The name and address of the Advocates to the Petitioning Creditor are Messrs. S. K. Ling & Tan Advocates (Kuching) whose address for service is at C355 to C359, 2nd Floor, Block C, Icom Square, Jalan Pending, 93450 Kuching, Sarawak.

This **Bankruptcy Order on Creditor's Petition** is filed by Messrs. S. K. Ling & Tan Advocates (Kuching), Advocates acting for and on behalf of the above-named Judgment Creditor whose address for service is at C355 to C359, 2nd Floor, Block C, Icom Square, Jalan Pending, 93450 Kuching, Sarawak. *(Ref: BPM/Betong/LT-KG/64/23/cc)*

VERIF. CODE : 13-1189821-6176312-7826471****ENCLOSURE NO. : 19
To verify the true copy of the document received, please acccess this link. URL Link: https://ekss-portal.kehakiman.gov.my/portals/verify/

KERAJAAN MALAYSIA
JABATAN INSOLVENSI MALAYSIA

RESIT RASMI

ASAL

Diterima daripada	:S.K.LING & TAN ADVOCATES (KCH)		
No.Pengenalan / No.Syarikat	:KCH/SKL	No. Resit	:1312024002761
Alamat	:C355 TO C359 2ND FLOOR BLOK C ICOM SQUARE JLN PENDING 93450 Kuching Sarawak	Tarikh	:20/08/2024
		Resit	:9:55:08
		Kaunter	:SA

Nama Bankrap / Nama Syarikat : [redacted]
No. Pengenalan / No. Syarikat : 920623135203
No. Insolvensi : BP003820/2024

Kod Akaun : 872499

Perihal Terimaan

Bil	Kod Item	Perihal Item	Amaun (RM)
1	159	Bayaran Borang Bukti Hutang Kebankrapan	50.00

Jumlah : **RM50.00**

Mod Terimaan : Kad Debit

Bil	No. Rujukan Mod Terimaan	Nama Bank	Amaun Dokumen (RM)
1	002021	AFFIN BANK BERHAD	50.00

Ringgit Malaysia : Lima Puluh Sahaja

HANYA SAH LAKU SETELAH PENYELESAIAN BANK

Ini adalah cetakan komputer dan tandatangan tidak diperlukan

No. Kelulusan Perbendaharaan : KK/BPSK/10/600-2/1/2(6)

JABATAN INSOLVENSI MALAYSIA NEGERI SARAWAK

IN THE HIGH COURT IN SABAH AND SARAWAK AT SRI AMAN

IN BANKRUPTCY PROCEEDINGS NO. SRA-29NCC-9-4/2024 (HC)

Re *(a)* **S[redacted]N.KP.9206[redacted]**
[Trading under the name and style of SYAR[redacted]
(Business Name Registration No. GA2015099)]

GENERAL PROXY

I, **K[redacted]WN.KP. 7301[redacted]2)**, Head of Special Asset Management Centre, Sarawak Regional Office of **BANK PERTANIAN MALAYSIA BERHAD (Company No. 811810-U)** of Lot 491 & 492, Jalan Rambutan, 93400 Kuching, Sarawak, Creditor, hereby appoint Messrs S. K. Ling & Tan Advocates (Kuching) at C355 to C359, 2nd Floor, Block C, Icom Square, Jalan Pending, 93450 Kuching, Sarawak, to be my general proxy in the above matter (~~excepting as to the receipt of dividend~~).

Dated this 16 AUG 2024 day of , 2024

Signature of witness .....

T[redacted]
LL.B. (Hons), CLP (Mal)
Advocate & Solicitor
Commissioner for Oaths
S.K. Ling & Tan Advocates
C355 to C359, 2nd Floor, Block C,
Icom Square, Jalan Pending,
93450 Kuching, Sarawak

Signature .....

Address .....

NOTES

1. When the creditor desires that his general proxy should receive dividends, he should strike out the words "excepting as to the receipt of dividend", putting his initials thereto. The creditor must fill up the blanks in his own handwriting.

2. The authorised agent of a corporation may fill up blanks, and sign for the corporation, e.g., For Company (signed) (duly authorized under the seal of the company).

3. A proxy given by a firm or person carrying on business may be filled up and signed by any person having a general authority in writing to sign for such firm or person.

Such person shall sign:
(signed) (duly authorized by a general authority in writing to sign on behalf of *
)
#

- Name of firm or person.

The Official Assignee may require the authority to sign to be produced for his inspection.

CERTIFICATE TO BE SIGNED BY WITNESS OF
CREDITOR BLIND OR INCAPABLE OF FILLING
UP THE ABOVE PROXY

I, of hereby certify that all insertions in the above proxy are in my own handwriting, and have been made by me at the request of the above-named , and in his presence before be attached his signature (or mark) thereto.

Dated this day of , 2024